CENTER FOR TRADE POLICY AND ECONOMIC SECURITY

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ANCHOR:

A Litigation-Resilient Architecture for Evidence-Gated Tariff and Trade Enforcement Policy

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ABSTRACT

This paper presents a litigation-resilient tariff and trade enforcement architecture designed to operationalize lawful, evidence-gated measures for (i) remedial response to verified distortion or coercive trade practices and (ii) narrowly tailored reduction of strategic dependencies that create foreign coercive leverage. The architecture explicitly treats industrial policy scaling as a separate instrument set and prohibits tariffs from becoming generalized punishment or permanent baseline taxation absent a defined emergency predicate and macro-stability clearance. The framework is built on seven independent, severable authority rails grounded in specific statutory authority and international trade law. This revision adds five hardening elements: (1) a load-bearing definitions section (Section 4) establishing predicates for each escalation tier, including an explicit exclusions list for protected conduct; (2) a tiered escalation ladder with HS-code-level targeting discipline and predicate cross-references; (3) a standards-of-proof framework distinguishing credible signal, verified distortion, material harm with causation, and systemic-risk threshold; (4) a neutral tariff-targeting log with objective triggers and a prohibited-factor list; and (5) economic shock guardrails with defined governance, pause mechanics, and override documentation requirements.

Keywords: tariff architecture, Trade Act §301, Trade Expansion Act §232, IEEPA, §122 bridge, AD-CVD, WTO/GATT Article XXI, HS-code targeting, coercive trade practice, strategic dependency, evidence gating, coalition durability, economic shock guardrails, macro-stability clearance, severability, tariff-targeting log

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INTERPRETIVE RULE: SEVERABILITY

Each section, authority rail, tier, definition, exclusion, appendix, and provision in this framework is intended to be independently operative and severable from every other. Judicial invalidation, enjoinment, or limitation of any provision does not affect the validity or enforceability of any remaining provision. Each mechanism is grounded in its own independent legal authority and is designed to function in the absence of any other. Invalidation of any single authority rail does not affect actions taken under the remaining rails, provided those actions independently satisfy the requirements of their own rail. This interpretive rule applies to all policy instruments and implementing guidance that incorporates this framework by reference.

SECTION 1: DESIGN PRINCIPLES FOR A LITIGATION-RESILIENT TARIFF POSTURE

1.1 The Core Design Problem

A tariff posture that overpromises collapses at three points simultaneously: in court, where unsupported emergency findings and overbroad scope generate CIT/CAFC adverse precedent; in markets, where inflationary pass-through, FX overshoot, and retaliation-driven export harm impose domestic costs that force political reversal before the strategic objective is reached; and in coalition, where allies subjected to the same tariff architecture as adversaries fracture and withhold the coordination that makes the posture effective. The goal of this framework is a tariff posture that applies maximum lawful pressure and does not hand opponents — in court, in markets, or in allied capitals — an easy point of entry.

The design rules that govern this architecture:

- Target verified conduct, not outcomes. Every tariff action must be tied to a documented predicate under Section 4 — distortion, coercive practice, or strategic dependency. Tariffs are instruments for changing a foreign government's conduct or reducing coercive leverage, not instruments for guaranteeing a particular domestic economic outcome.
- Never treat credible signal as confirmed finding. The standards-of-proof framework in Section 5 maps the evidence threshold required before each tier of action. Credible signal initiates monitoring and consultation; it does not support tariff imposition.
- Avoid automatic escalation. Every consequence must flow from a documented evidentiary record, a completed authority-rail review, and — at Tier 2 and above — a macro-stability clearance. Automatic or pre-set escalation schedules read as arbitrary and capricious under APA review.
- Tie every action to a named authority rail and a written record. Measures without a documented authority basis are vulnerable to challenge and generate adverse precedent that constrains future legitimate actions under the same rail.
- Apply controls prospectively. New tariff measures, product-category additions, and emergency-predicate scope expansions should specify effective dates and, where national security permits, provide compliance runway. Retroactive scope expansions are an APA vulnerability and a WTO exposure.
- Gate coalition-sensitive measures on allied coherence review. Tier 2 and above measures require a completed coalition-risk review before action. Measures that treat allies and adversaries symmetrically without a documented rationale fracture the coalition required to sustain pressure.
- Build reversibility into every pressure line. Each tier specifies what verified foreign conduct change or documented resolution of the underlying predicate triggers suspension or removal. Published, specific off-ramps are what distinguish remedial tariffs from permanent taxation.
- Macro-stability is a design constraint, not a concession. This architecture is defined as unsuccessful if it achieves leverage at the cost of persistent inflationary pass-through, destabilizing FX overshoot, retaliation-driven export collapse, or coalition fracture. The economic shock guardrails in Section 7 are binding constraints with presumptive pause and recorded override mechanics — they are an engineered feature of the architecture, not a safety valve.
- Tariffs are one instrument in a coordinated posture. The sequencing and coordination rule in Section 1.3 defines when tariff tools and non-tariff tools are complements versus substitutes. This paper is designed to operate in coordination with WP-2026-PERSIST-01 (competitive statecraft) and WP-2026-IMMPOL-04 (enforcement leverage architecture), not as a replacement for either.

1.2 What This Architecture Does and Does Not Claim

ARCHITECTURE SCOPE	
This Architecture DOES	**This Architecture DOES NOT**
Target documented coercive trade practices and verified distortions	Promise trade deficit elimination as a standalone policy objective
Apply narrowly tailored strategic-dependency tariffs via IEEPA with emergency nexus	Authorize tariffs as generalized punishment absent a documented predicate
Maintain HS-code-level targeting discipline as the default unit of escalation	Treat broad country-wide tariffs as the default escalation unit
Publish off-ramps tied to specific conduct change or predicate resolution	Apply tariffs permanently absent a renewed emergency predicate and macro-stability clearance
Gate Tier 2+ actions on macro-stability clearance and coalition-risk review	Treat allies and adversaries symmetrically without documented rationale
Operate each authority rail independently to eliminate single points of failure	Use §232 as a substitute for industrial policy or generalized retaliation
Treat industrial policy scaling as a separate, subordinated instrument set	Use §122 as a substitute for IEEPA when the statutory bridge period expires
Complement export control, sanctions, and investment screening tools	Override congressional appropriations, WTO obligations, or FTA dispute mechanisms

1.3 Sequencing and Coordination Rule

Tariff tools and non-tariff tools address different layers of the same strategic problem. The selection of instrument must match the action layer. Conflating instrument categories — using tariffs to accomplish what export controls are designed to do, or using sanctions to accomplish what resilience investment is designed to do — produces the instrument failure that generates adverse precedent and coalition fracture simultaneously.

INSTRUMENT SEQUENCING RULE

Tariffs (this paper): Import-flow tool. Use when the predicate is a verified distortion, coercive trade practice, or documented strategic dependency operating at the import level, and when CBP enforceability at the HS-code level is feasible. Not a substitute for production-level, finance-level, or technology-level instruments.

Export controls (WP-2026-PERSIST-01, Pillar 1): Production and technology tool. Use when the action must operate at the level of what technology and equipment can be transferred to a foreign entity, regardless of import flow.

Sanctions (WP-2026-PERSIST-01, Pillar 1): Finance and enabling tool. Use when the action must operate at the level of transaction access, capital flows, and designated entity financial activity.

Investment screening (WP-2026-PERSIST-01, Section 2.3): Ownership, data, and control tool. Use

when the action must operate at the level of foreign acquisition of U.S. critical technology, infrastructure, or sensitive data.

Resilience investment: Prerequisite and enabler tool. Use to reduce the structural dependencies that make tariff and sanctions pressure self-injurious. Without resilience investment, all other tools impose domestic costs that force political reversal. This is Pillar 5 of WP-2026-PERSIST-01.

DRAFTING CONSEQUENCE: A proposed tariff action that is more efficiently accomplished by an export control, sanctions action, or investment screening measure should be routed to that instrument. Tariff architecture does not substitute for the instrument best suited to the action layer.

SECTION 2: AUTHORITY RAILS — WHAT DEFINES THE PLAYING FIELD

Authority rails define what legal instruments govern each tariff action, where each instrument's hard limits are, and what record and process discipline is required to keep actions within those limits. The function of this section is to tell the reader what cannot be crossed, so the rest of the framework reads as engineered rather than aspirational. Each rail ends with a single-sentence drafting consequence.

2.1 Trade Act of 1974 § 301 Rail

Section 301 of the Trade Act of 1974 (19 U.S.C. § 2411) authorizes the U.S. Trade Representative to take action against foreign countries that maintain acts, policies, or practices that are unreasonable, unjustifiable, or discriminatory and burden or restrict U.S. commerce. § 301 is the primary remedial rail for documented coercive trade practices and unfair trade barriers. It requires a formal investigation, a written determination, and — for WTO-inconsistent measures — compliance with WTO dispute settlement procedures.

§ 301 actions are subject to robust APA review because the investigation record is the dispositive evidentiary basis. Courts have sustained § 301 actions with detailed records and rejected actions where the record could not support the unfair-practice finding. This is a hard procedural limit: the investigation record built before action is taken is the primary determinant of survivability.

DRAFTING RULE — § 301 RAIL

§ 301 actions must be grounded in the USTR investigation record. The documented unfair practice or coercive conduct finding must specifically identify the act, policy, or practice at issue, the statutory basis (unjustifiable, unreasonable, or discriminatory), and the nexus to U.S. commerce burden. Scope must be calibrated to the documented practice — not expanded to cover sectors unaddressed in the investigation.

WTO notification and consultation obligations apply before implementation of WTO-inconsistent § 301 measures. Failure to comply generates dispute settlement exposure that constrains U.S. retaliatory authority in future unrelated disputes. This is not a procedural courtesy; it is a strategic asset-preservation rule.

DRAFTING CONSEQUENCE: A § 301 action whose HS-line scope exceeds the documented burden finding in the USTR investigation record fails this architecture's predicate requirements and is not authorized under this rail.

2.2 Trade Expansion Act § 232 Rail

Section 232 of the Trade Expansion Act of 1962 (19 U.S.C. § 1862) authorizes the President to adjust imports that threaten to impair national security, following an investigation and report by the Secretary of Commerce. § 232 has historically received substantial judicial deference under the political question doctrine (Maple Leaf Fish Co. v. United States; Transpacific Steel LLC v. United States). That deference is not the central risk for this framework — definitional slippage is. § 232's deference has enabled its use for industrial policy and retaliatory purposes that contaminate the administrative record for the rail's legitimate uses.

This framework constrains § 232 to preserve the analytic integrity of 'national security' and to prevent § 232 from becoming the 'everything bucket' that produces the record contamination and coalition-fracture risk that have characterized its broadest recent applications. Strategic dependency reduction outside a defense-industrial predicate routes through IEEPA, which imposes a more explicit emergency nexus requirement.

§ 232 NATIONAL SECURITY RAIL — DRAFTING LIMIT

This architecture uses § 232 only where the administrative record supports a defense-industrial or military-capacity nexus — munitions supply chains, defense-grade metals and materials, critical defense electronics, or other sectors where the Secretary of Commerce's report documents a specific military-readiness impairment risk. § 232 is not used as a substitute for industrial policy or generalized retaliation.

Strategic dependency reduction outside a defense-industrial predicate proceeds under IEEPA (Section 2.3) or time-limited § 122 bridge measures (Section 2.4) with explicit emergency findings, guardrail clearance, and published off-ramps.

RECORD INTEGRITY RULE: Any § 232 action under this architecture must be grounded in the Secretary of Commerce's § 232 report and its evidentiary record. National security rationales may not be developed post-hoc outside the § 232 process to expand scope or cure evidentiary defects. Scope must remain HS-line tailored to the defense-industrial predicate reflected in the Commerce report.

DRAFTING CONSEQUENCE: A § 232 action whose scope exceeds the defense-industrial predicate documented in the Commerce report — or whose record relies on post-hoc rationales not developed in the § 232 investigation — fails this architecture's rail requirements and must be re-routed to the IEEPA or § 301 rail with an independent record.

2.3 IEEPA Rail (Strategic Dependency and Emergency Measures)

The International Emergency Economic Powers Act (50 U.S.C. §§ 1701–1708) authorizes the President to regulate imports, exports, and transactions involving foreign countries during a declared national emergency. IEEPA is the primary authority for strategic-dependency tariffs under this framework — those that reduce foreign coercive leverage over civilian-critical but security-relevant supply chains that fall outside the § 232 defense-industrial predicate.

IEEPA authority is broad but structurally constrained. This is a hard structural limit: IEEPA requires a declared national emergency with a documented nexus between the emergency and the measures imposed. The scope of IEEPA action must be bounded by the emergency declaration and cannot be expanded beyond that nexus to reach sectors or products not addressed in the declaration. The evidentiary record built at the time of declaration and action is the primary determinant of survivability under APA review.

DRAFTING RULE — IEEPA RAIL

IEEPA strategic-dependency tariffs require: (a) a declared national emergency with documented nexus to the specific coercive-leverage or supply-chain-fragility risk; (b) scope bounded to HS-line items where the strategic-dependency predicate (Section 4.3) is documented; (c) a completed macro-stability clearance (Section 7) before imposition; and (d) published off-ramps specifying what verified supply-chain diversification, allied alternative sourcing, or foreign conduct change triggers suspension.

IEEPA scope may not be expanded beyond the emergency nexus to reach sectors addressed by other rails (§ 301, § 232) or to accomplish industrial policy objectives not grounded in the emergency predicate. This is the record discipline that prevents IEEPA from becoming the same 'everything bucket' risk that § 232 creates when used without predicate constraints.

DRAFTING CONSEQUENCE: An IEEPA tariff action whose product-category scope cannot be traced to the documented emergency nexus and the Section 4.3 strategic-dependency predicate fails this architecture's rail requirements and does not proceed.

2.4 Trade Act § 122 Bridge Rail

Section 122 of the Trade Act of 1974 (19 U.S.C. § 2132) authorizes the President to impose temporary import surcharges or quotas to address large and serious balance-of-payments deficits. § 122 measures are limited to 150 days without congressional authorization and may not exceed 15 percent ad valorem. § 122 functions in this architecture as a bridge — a tool to impose urgent measures while the IEEPA emergency predicate and record are being developed, not as a standalone authority for sustained strategic-dependency tariffs.

§ 122 BRIDGE-EXPIRATION RULE

§ 122 measures in this architecture are time-limited bridge actions and automatically expire absent congressional continuation. A § 122 bridge may not be used to sustain strategic-dependency tariffs beyond its 150-day statutory window.

Continuation of strategic-dependency-driven measures requires transition to an IEEPA predicate (or other applicable rail) within the § 122 period, with documented emergency nexus, scope discipline, and completed macro-stability clearance. A § 122 bridge measure that has not transitioned to an independent authority rail within the 150-day window expires as a matter of this framework's requirements, not merely by statute.

DRAFTING CONSEQUENCE: Using § 122 as a substitute for IEEPA when the statutory bridge period expires — rather than as a sequencing tool while the IEEPA record is developed — converts a bridge measure into a workaround for the emergency nexus requirement and renders subsequent IEEPA action vulnerable to the argument that no genuine emergency existed.

2.5 Antidumping and Countervailing Duty Rail (AD-CVD)

The antidumping (AD) and countervailing duty (CVD) statutes (19 U.S.C. §§ 1671–1677n) provide quasi-judicial, evidence-intensive remedies against imports sold at less than fair value (AD) or that benefit from actionable foreign government subsidies (CVD). AD-CVD proceedings are administered by the Department of Commerce (injury/dumping margin determinations) and the International Trade Commission (material injury). These are the primary rails for responding to documented subsidy distortion and dumping predicate.

DRAFTING RULE — AD-CVD RAIL

AD-CVD proceedings are quasi-judicial: they require administrative records, public comment, and reviewable determinations. Political interference in the determination process — including executive pressure on Commerce or ITC determinations — generates CIT reversal risk, WTO dispute exposure, and precedent that weakens future AD-CVD cases.

AD-CVD duties must be sized to the calculated margin (dumping) or subsidy rate (CVD), not to a desired price outcome or domestic competitiveness objective. Over-sized duties are reversed on review. Under-sized duties under-remediate the distortion.

DRAFTING CONSEQUENCE: An AD-CVD measure that cannot be grounded in the administrative determination record — or that has been shaped by executive pressure outside the quasi-judicial process — fails this architecture's record-integrity requirement and is not authorized under this rail.

2.6 WTO / FTA Rail (Coalition and International Law Constraints)

U.S. tariff and trade enforcement measures operate within the WTO framework (GATT 1994, Antidumping Agreement, SCM Agreement, Safeguards Agreement) and applicable free trade agreements (USMCA, KORUS, Japan, and others). The WTO/FTA rail defines the international law playing field: what national security and emergency exceptions are available, where those exceptions require notification and consultation, and what FTA dispute mechanisms create binding procedural obligations.

Coalition coordination is not optional at Tier 2 and above. This is a hard structural limit: U.S. tariff measures that treat allies subject to FTAs without documented rationale fracture the allied coalition that export control and sanctions coordination depends on. The live contradiction between trade-enforcement actions against FTA partners and technology-denial coordination with those same partners is the largest implementation gap in this architecture's relationship with WP-2026-PERSIST-01.

DRAFTING RULE — WTO / FTA RAIL

GATT Article XXI (national security exception) is available for measures necessary to protect essential security interests. The exception has been invoked for § 232 measures. WTO panels have affirmed that Article XXI is justiciable (Russia — Traffic in Transit) and have required that the invoking member satisfy both the 'emergency in international relations' predicate and the 'necessity' element. Framing Article XXI as self-judging is no longer accurate and produces dispute outcomes that constrain future invocations.

FTA partner exemptions are not automatic. USMCA Article 32.10 preserves national security measures but does not exempt them from dispute mechanisms. Measures applied to FTA partners without documented rationale are subject to USMCA state-to-state dispute and generate the political cost that fractures technology-denial coordination.

DRAFTING CONSEQUENCE: A tariff measure applied to FTA allies without a documented rationale distinguishing their conduct from the target adversary's conduct fails this architecture's coalition-durability requirements and triggers mandatory coalition-risk review under Section 7.

2.7 Customs Administration Rail (CBP Enforceability)

Tariff measures are only as effective as the customs administration infrastructure that implements them. The CBP enforceability rail governs rules-of-origin integrity, anti-evasion

enforcement, and the administrative feasibility of HS-code-level targeting. A tariff measure that cannot be enforced at the border — because the rules of origin are manipulable, evasion is feasible through transshipment, or the HS classification is ambiguous — does not achieve its intended effect and creates compliance costs for compliant actors that the evading actors avoid.

DRAFTING RULE — CUSTOMS ADMINISTRATION RAIL

HS-code targeting is the default unit of escalation under this architecture because it is the most enforceable unit. Sector-wide or country-wide measures are permitted only where HS-level targeting is infeasible due to documented evasion patterns, and only where the record documents both the enforceability constraint and the macro-stability clearance for the broader measure.

Rules-of-origin integrity is a durability condition. A measure that can be circumvented through transshipment, minimal processing, or country-of-origin manipulation does not achieve its remedial objective and produces the domestic-industry injury it was designed to prevent. Anti-evasion enforcement (Section 232(d), Enforce and Protect Act) must be budgeted and staffed before the tariff measure is imposed.

DRAFTING CONSEQUENCE: A tariff measure whose HS-code scope cannot be administered by CBP with existing rules-of-origin and anti-evasion infrastructure — without documented investment in that infrastructure — fails this architecture's enforceability requirement and should be redesigned before imposition.

SECTION 3: TIERED ESCALATION LADDER

The escalation ladder converts tariff pressure into procedure. No tier is automatic. Every action at every tier flows from a documented evidentiary record grounded in the Section 4 predicate definitions, a completed authority-rail review, and — at Tier 2 and above — a macro-stability clearance and coalition-risk review. The 'Predicate' column in each tier row identifies the specific Section 4 definition that must be satisfied before the tier's instruments are available. An action whose record cannot satisfy the cited predicate does not proceed under this architecture.

TIERED ESCALATION LADDER — ANCHOR FRAMEWORK

Tier / Label	Activation Threshold	Predicate (§4.X)	Available Instruments	Risk Profile	Suspension / Reversal Trigger
Tier 0 — Baseline	No special triggering event required; ongoing condition of trade competition.	None (See §4.X)	Allied coherence review; CBP anti-evasion capacity investment; supply chain mapping and dependency assessment; domestic resilience investment; WTO/FTA posture monitoring; open-source trade-flow analysis.	No significant systemic risk. Actions are defensive, capacity-building, and intelligence-gathering.	No suspension trigger. Tier 0 is permanent baseline.
Tier 1 —	Credible	§4.1,	§ 301 investigation and	Low systemic	USTR or Commerce

Targeted Remedial	signal (§5, Tier A) of distortion or coercive practice. Initiates formal investigation. Verified distortion (§5, Tier B) required before imposition.	§4.2	determination; AD-CVD petition; HS-line targeted measures bounded by investigation record; WTO notification where required; FTA consultation where applicable.	market risk. Primary risk is retaliatory response from targeted country. Coalition review required if FTA partner is involved.	determination that the documented practice has been remediated or withdrawn. WTO panel finding where applicable. Published off-ramp specifics in action record.
Tier 2 — Strategic Dependency	Confirmed attribution (§5, Tier B) of strategic dependency creating documented coercive leverage. Macro-stability clearance required. Coalition-risk review completed.	§4.3	IEEPA strategic-dependency tariffs (HS-line bounded by emergency nexus); § 122 bridge measures (150-day limit); coordinated allied supply-chain diversification investment; domestic production incentives as parallel track.	Moderate systemic risk. Macro-stability clearance (Section 7) required before action. Guardrail index reviewed. Coalition-risk review memo required.	Verified supply-chain diversification to allied sources; documented reduction in coercive leverage below threshold; or IEEPA emergency termination following allied sourcing alternatives established.
Tier 3 — Systemic Response	Material harm with causation (§5, Tier C) documented across multiple verified instances, establishing pattern of systemic coercive or distortive trade conduct threatening allied economic security architecture. Guardrail index green zone required. Presumptive pause if any guardrail	§4.1 – §4.4	Broad IEEPA measures (guardrail-index gated); comprehensive § 301 action; coordinated allied measures; sector-wide emergency surcharges (§ 122 bridge + congressional engagement). Rare; each action individually authorized.	Significant systemic, inflationary, and retaliation risk. Requires: (a) systemic-risk threshold finding (§5, Tier D); (b) guardrail index green zone; (c) coalition concurrence from at least two primary partners; (d) congressional notification memo; (e) public off-ramp statement.	Verified, sustained reduction in the systemic distortion or coercive conduct pattern; allied coalition concurrence on suspension; macro-stability indicators confirm clearance; public off-ramp completion.

	indicator is red.				

UNIT OF MEASURE AND ESCALATION

The unit of tariff action and escalation under this architecture is the product category (HS-coded line item), optionally conditioned on country-of-origin attribution and a documented Section 4 predicate. Sector-wide or country-wide measures are permitted only where: (i) HS-level targeting is infeasible due to documented evasion patterns, and (ii) the record documents the enforceability constraint and a completed macro-stability clearance for the broader measure. The default is surgical; broad scope must be earned via record.

SECTION 4: DEFINITIONS AND BRIGHT LINES (LOAD-BEARING PREDICATES)

This section establishes the definitional predicates that every tier of the escalation ladder depends on. It is load-bearing: if a proposed action cannot satisfy the applicable definition in this section, it does not satisfy the escalation ladder's predicate requirement, and it does not proceed under this architecture. Vague predicates produce arbitrary escalation. Sharp predicates produce records that survive APA review. Section 4.5 is the explicit exclusions list — it defines what this architecture does not reach, and it functions as preemptive armor against facial overbreadth challenge.

4.1 Coercive Trade Practice

DEFINITION: A coercive trade practice is an act, policy, or practice by a foreign government that: (a) uses trade access, market conditions, or supply-chain dependencies as an instrument of political or economic coercion directed at the United States, an ally, or a domestic sector; (b) is documented through government directives, official statements, pattern-of-conduct analysis, or allied government assessments; and (c) is distinguishable from ordinary competitive conduct by the presence of a coercive intent or effect that cannot be explained by normal commercial logic.

- INCLUSIONS: Documented refusal to supply critical inputs to a specific country in response to a political dispute; deliberate market-access denial targeting specific companies or sectors in retaliation for government policy decisions; export licensing weaponized to create supply-chain fragility as negotiating leverage.
- EXCLUSIONS: Price competition, efficiency gains, economies of scale, or market-share growth attributable to lawful competitive production absent documented coercive intent or effect.

Drafting consequence: A tariff action justified as a response to a coercive trade practice must identify the specific act, policy, or directive that constitutes the coercive practice, distinguish it from ordinary competition, and document the coercive intent or effect in the action record.

4.2 Distortion (Subsidy / Dumping / Forced Transfer)

DEFINITION: A trade distortion is a foreign government's act, policy, or subsidy that artificially alters the competitive conditions of trade in a manner not permitted under applicable international trade rules, documented through one of the following specific mechanisms:

- SUBSIDY DISTORTION: A financial contribution by a foreign government or public body that confers a benefit on a recipient and is specific to an enterprise, industry, or group, within the meaning of the SCM Agreement — including non-commercial pricing, debt forgiveness, preferential input pricing, and prohibited export subsidies.
- DUMPING: Exports priced below normal value (home-market price or constructed value) within the meaning of the WTO Antidumping Agreement and 19 U.S.C. § 1677b, documented through a Commerce margin calculation.
- FORCED TECHNOLOGY TRANSFER: A requirement by a foreign government, as a condition of market access, investment approval, or joint-venture formation, that a U.S. entity transfer proprietary technology, source code, or trade secrets to a foreign entity or government, documented through company reports, government directives, or legal proceedings.
- DISCRIMINATORY MARKET ACCESS: A systematic policy of excluding U.S. goods or services from market access while benefiting from reciprocal U.S. market access, documented through regulatory analysis, trade barrier reports, or government directives.

Drafting consequence: A tariff action justified as a response to distortion must identify the specific mechanism, the responsible government entity, the affected HS-line items, and the nexus to domestic industry harm or coercive leverage, in the action record.

4.3 Strategic Dependency

DEFINITION: A strategic dependency exists where: (a) U.S. domestic production or allied-nation sourcing of a product, input, or technology is insufficient to meet national security or critical civilian needs in a disruption scenario; (b) the concentration of supply in a foreign country or foreign-controlled entity exceeds a documented substitutability threshold; and (c) the time-to-replace the foreign supply with domestic or allied-nation alternatives exceeds a documented resilience horizon.

A strategic dependency is distinguished from ordinary import dependence by the combination of all three elements: concentration, low substitutability, and long time-to-replace. A product that is primarily imported from one country but for which domestic or allied alternatives exist at scale within 12–24 months does not meet the full strategic-dependency predicate.

- REQUIRED DOCUMENTATION: Sector-specific supply-chain mapping identifying the primary foreign sources; substitutability analysis documenting domestic and allied-nation production capacity; time-to-replace analysis based on capital investment timelines and regulatory approval periods; and a documented nexus to national security or critical civilian sector impact in a disruption scenario.

Drafting consequence: A tariff action justified as addressing a strategic dependency must document all three elements — concentration, substitutability, and time-to-replace — for the specific HS-line items at issue. Broad sector characterizations without item-level analysis fail the predicate requirement.

4.4 Emergency Predicate (for IEEPA and § 122 Bridge Measures)

DEFINITION: An emergency predicate exists for IEEPA or § 122 bridge measures where: (a) a declared national emergency identifies a specific, unusual, and extraordinary threat to the national security, foreign policy, or economy of the United States; (b) that threat has at least in part its source in a foreign country; and (c) the proposed tariff measures are directly connected to addressing that specific threat, as documented in the action record.

- The emergency predicate requires documented nexus between the declared emergency and the specific product categories covered by the measure. A declared emergency that does not identify the specific threat addressed by each covered HS-line item fails the nexus requirement.
- Emergency measures may not be sustained indefinitely absent periodic renewal of the emergency finding. An emergency measure whose predicate has been resolved — through supply-chain diversification, foreign conduct change, or other means — must be suspended under the published off-ramp.

Drafting consequence: An IEEPA or § 122 action whose product-category scope cannot be traced to the specific threat identified in the emergency declaration fails the emergency-predicate requirement and does not proceed under this rail.

4.5 Legitimate Trade / Protected Conduct — Explicit Exclusions (Load-Bearing)

This architecture does not treat the following, without additional verified predicates under Sections 4.1–4.4, as sufficient grounds for tariff escalation. This exclusion list is load-bearing: if the record for a proposed action shows only factors on this list, the action fails the predicate requirement and does not proceed. A record that cannot distinguish a proposed action from ordinary trade competition or macro conditions fails this architecture's predicate requirements.

EXPLICIT EXCLUSIONS — NOT SUFFICIENT PREDICATES WITHOUT ADDITIONAL VERIFIED PREDICATES

(1) ORDINARY COMPETITIVE PRICING: Price competition, efficiency gains, economies of scale, or market-share growth attributable to lawful competitive production — absent verified dumping, subsidy distortion, or documented coercive practice under Section 4.1 or 4.2.

(2) MACROECONOMIC FX MOVEMENTS: Currency appreciation or depreciation — absent a documented manipulation predicate under applicable law (19 U.S.C. § 4421 et seq.; IMF Article IV) and an attributable causal link to material harm to a specific domestic sector.

(3) STANDARD SOE PARTICIPATION: State-owned enterprise participation in trade — absent verified distortion (non-commercial pricing, prohibited subsidies, forced transfer, discriminatory market access, or documented coercive practice under Section 4.1 or 4.2).

(4) ALLY / PARTNER GOOD-FAITH TRADE: Trade by allies and partners operating in good faith under applicable FTAs and WTO-consistent conduct — absent verified evasion, coercive practice, or documented material security risk. The baseline presumption for treaty allies is compliance unless the record affirmatively shows otherwise.

(5) REVENUE MAXIMIZATION: Revenue generation as a primary purpose. Revenue effects may occur as a consequence of legitimate tariff action but are not an independent predicate for imposition under this architecture.

(6) POLITICAL ANIMUS OR RETALIATORY MOTIVE: Selection of a product category or country based on political animus, retaliatory intent unconnected to a Section 4.1–4.4 predicate, or domestic political considerations. This factor is explicitly prohibited by the Neutral Selection Rule (Section 6)

and is a selection-log documentation requirement.

(7) GENERAL TRADE DEFICITS: A bilateral or aggregate trade deficit as a standalone predicate. Trade deficits may inform strategic-dependency analysis (Section 4.3) but do not independently justify tariff escalation under this architecture. Drafting consequence: If the record shows only a trade deficit without a documented coercive practice, distortion, or dependency predicate, the action fails.

(8) VOLUME-BASED TARGETING WITHOUT VERIFIED DISTORTION: Import share or import volume alone — where the share is attributable to lawful competitive production rather than a Section 4.1–4.4 predicate. The 'because they make a lot of X' rationale is not a predicate. Targeting based solely on import volume without documented distortion or coercion fails the predicate requirement and is the most common basis for CIT adverse precedent in this area.

DRAFTING CONSEQUENCE (global): If the record for a proposed tariff action shows only factors on this exclusion list — with no additional verified predicate under Sections 4.1–4.4 — the action fails this architecture's predicate requirements and does not proceed.

SECTION 5: STANDARDS OF PROOF

This section prevents the central failure mode in tariff policy: acting on credible signal rather than verified finding, losing court and coalition credibility when the evidentiary basis is challenged, and generating adverse precedent that constrains future legitimate actions under the same rail. The four-tier proof framework maps the evidence threshold required before each category of tariff action. Lower tiers trigger investigation and consultation; higher tiers trigger imposition. No instrument at any tier is available below its required evidentiary threshold.

STANDARDS OF PROOF — ANCHOR FRAMEWORK

Standard	Definition	Action Threshold	Required Documentation
Tier A — Credible Signal	OSINT-derived pattern; trade-flow anomaly; allied government advisory; industry complaint with supporting data. Not independently action-triggering.	Initiates formal investigation (§ 301, AD-CVD petition, or IEEPA emergency assessment). Does not support tariff imposition, public attribution, or emergency finding.	Open-source analytical record; complaint or petition documentation; allied advisory record. Initiates record-building, not record-completing.
Tier B — Verified Distortion / Confirmed Attribution	Formal investigation determination (USTR § 301 finding; Commerce AD/CVD margin calculation); corroborated by two or more independent sources (government investigation, allied assessment, financial or forensic analysis). Required before Tier 1 imposition or any public attribution.	Supports Tier 1 tariff imposition under § 301 or AD-CVD; supports public attribution of coercive practice or distortion. Required predicate for any Tier 2 IEEPA strategic-dependency action. NOTE: Some instruments (e.g., § 301) are technically available on a lower reasonable-grounds standard; this architecture voluntarily imposes Tier B	USTR determination or Commerce calculation; corroborating source documentation; legal review; interagency coordination record; Coalition-risk review memo if FTA partner involved.

		as the minimum for imposition as a durability rule.	
Tier C — Material Harm with Causation	Documented pattern of harm to a specific domestic industry or allied security interest, with attribution to the foreign practice or dependency rather than to domestic or third-country factors. ITC injury determination or equivalent interagency harm assessment. Causation must be specific and documented, not general.	Required threshold for Tier 2 strategic-dependency IEEPA measures where domestic harm is the asserted basis. Required for Tier 3 systemic response initiation. Guardrail index reviewed before Tier 3 action.	ITC determination or equivalent interagency harm assessment; causation analysis distinguishing foreign-practice harm from domestic and third-country factors; Coalition-risk review memo; guardrail index status review.
Tier D — Systemic Risk Threshold	Sustained, documented pattern across multiple Tier C findings establishing material threat to U.S. or allied economic security architecture. Not met by single-sector findings. Guardrail index must be in green zone for Tier 3 initiation.	Required threshold to initiate Tier 3 systemic actions. Guardrail index must be in green zone. Presumptive pause active if systemic-risk finding is based solely on extrapolation from Tier A or B evidence without independent Tier C-level verification across multiple sectors.	Comprehensive analytical record; interagency systemic-risk assessment; guardrail index status; congressional notification memo; Coalition-risk review memo; public off-ramp statement.

EVIDENTIARY INTEGRITY RULE

No tariff imposition at Tier 2 or above may be initiated based on a credible signal or a trade deficit alone. The evidentiary gap between 'we believe this distortion is occurring' and 'we have a formal determination that it occurred' is the primary point of legal challenge in CIT/CAFC review. Closing that gap before imposition — not after challenge — is what distinguishes this architecture from tariff postures that collapse under review.

SECTION 6: NEUTRAL TARIFF-TARGETING RULE

6.1 The Targeting Problem

Product-category selection and country targeting are the primary vectors for arbitrary-and-capricious and selective-enforcement challenge in tariff litigation. Challengers argue that a specific product category or country was targeted because of political animus, retaliatory motive, or domestic political considerations rather than documented predicate conduct. The complete defense is a documented, neutral targeting methodology applied uniformly across all candidate product categories and countries, determined before the targeting decision, documented at the time, and preserved as a litigation-ready record.

NEUTRAL TARIFF-TARGETING CRITERIA (Required Documentation)

A tariff action, product-category addition, or country-attribution determination under this framework may be initiated only when one or more of the following objective triggers is documented in the selecting authority's record before the targeting decision:

(a) FORMAL INVESTIGATION FINDING: A USTR § 301 determination, Commerce AD/CVD margin calculation, ITC injury determination, or equivalent formal agency finding documenting the applicable Section 4.1–4.4 predicate for the specific HS-line items proposed for action.

(b) VERIFIED SUPPLY-CHAIN DEPENDENCY: A completed supply-chain mapping and dependency assessment (Section 4.3) documenting concentration, substitutability, and time-to-replace for the specific product categories proposed for IEEPA action.

(c) PRIOR INVESTIGATION FINDING NOT REMEDIATED: A prior formal investigation finding of the same category of distortion, coercive practice, or dependency for the same HS-line items within the preceding 36 months that has not been remediated within the published off-ramp period.

(d) ALLIED GOVERNMENT REFERRAL: A formal referral from a partner nation trade authority or security agency documenting a distortion, coercive practice, or dependency predicate, corroborated by at least one U.S. government agency finding.

(e) INSPECTOR GENERAL OR CONGRESSIONAL OVERSIGHT REFERRAL: A referral from an agency Inspector General or congressional oversight body based on independent investigation.

SELECTION PROHIBITION: No tariff action may be initiated based on: bilateral trade deficit as a standalone factor; political animus toward a foreign government or its officials; retaliatory motive unconnected to a Section 4.1–4.4 predicate; domestic political considerations; import volume or market share absent verified distortion or coercive practice; or any factor related to viewpoint, expression, or political relationship rather than documented conduct.

DOCUMENTATION REQUIREMENT: The selecting authority must maintain a tariff-targeting log recording, for every product category and country attribution selected: (1) the objective trigger(s) documented; (2) the date the trigger was documented; (3) the identity of the selecting official and reviewing authority; (4) confirmation that no prohibited selection factor was considered; (5) the applicable authority rail and Section 4 predicate; and (6) the off-ramp criteria — what verified conduct change or predicate resolution would support suspension or removal. This log is the primary defense exhibit in any arbitrary-and-capricious or selective-enforcement challenge.

6.2 Prohibited Factor List

- Bilateral or aggregate trade deficit as a standalone targeting factor.
- Import volume or market share absent verified distortion or coercive practice under Section 4.1 or 4.2.
- Political animus toward a foreign government, its officials, or its political system.
- Retaliatory motive in response to a foreign government action unconnected to a Section 4.1–4.4 predicate.
- Domestic political considerations, including electoral or lobbying pressure unconnected to documented predicate conduct.
- Currency movements absent documented manipulation predicate.
- SOE status absent documented distortion predicate.

SECTION 7: ECONOMIC SHOCK GUARDRAILS

The guardrails in this section are binding constraints with presumptive pause and recorded override mechanics — they are an engineered feature of the architecture, not a safety valve. They operationalize the Section 1 design principle that macro-stability is a design constraint: this architecture is defined as unsuccessful if it achieves trade leverage at the cost of persistent inflationary pass-through, destabilizing FX overshoot, retaliation-driven export collapse, or coalition fracture.

ECONOMIC SHOCK GUARDRAIL INDEX — PAUSE TRIGGERS

The guardrail index monitors five systemic economic stability indicators. A red-zone reading on any indicator triggers a presumptive pause on Tier 2 initiation or continuation of Tier 3 actions pending a recorded override review. Pause categories are public; specific threshold calibrations require classified or restricted baseline analysis for operational precision.

- Indicator A — CPI/PCE Inflationary Pass-Through: Sustained consumer price inflation attributable to tariff measures exceeding [X]% annualized pass-through in covered product categories signals that the domestic cost of the measure has exceeded its strategic benefit threshold. Source: BLS CPI; BEA PCE deflator; Federal Reserve pass-through analysis.

- Indicator B — FX Overshoot / Capital Flight: Appreciation of USD against primary affected-country currency exceeding [Y]% within [Z]-month window of measure imposition, combined with documented capital flow disruption, signals retaliatory FX-management response or unintended financial stability risk. Source: Federal Reserve H.10 data; Treasury FX monitoring.

- Indicator C — Retaliation Activation Index: Documented activation of retaliatory tariffs, export restrictions, or market-access barriers by targeted country or third parties against U.S. agricultural, industrial, or services exports, exceeding [W]% of U.S. export value in affected sectors. Source: USTR retaliatory action monitoring; USDA export data.

- Indicator D — Supply Chain Interruption Index: Documented shortage or price spike in covered product categories in downstream U.S. industries exceeding [V]% above pre-measure baseline, indicating that the tariff has disrupted supply before alternatives are available. Source: BLS Producer Price Index; ISM supply-chain disruption surveys.

- Indicator E — Allied Cohesion Index: Defection of one or more FTA partners from coordinated trade enforcement posture, or activation of FTA dispute mechanism against U.S. measures, signaling that the tariff architecture has fractured the coalition it depends on for technology-denial coordination under WP-2026-PERSIST-01. Source: USTR FTA dispute tracker; allied government formal communications.

- GOVERNANCE: The guardrail index is owned by the interagency trade policy coordinating committee. The index is reviewed on a standing monthly basis and on an ad hoc basis before any Tier 2 initiation and before any Tier 3 continuation decision. Reviewing officials must include representation from USTR, Treasury, Commerce, and NSC at the Assistant Secretary level or above. Review minutes are retained as part of the administrative record.

- PAUSE MECHANICS: A presumptive pause is a hold pending a documented override review — not a permanent stop. To override a presumptive pause, the coordinating authority must produce a written override memorandum documenting: (a) which guardrail indicator is in red zone; (b) why the proposed or continued action is warranted despite the indicator reading; (c)

what risk-mitigation measures are in place; and (d) which senior official authorized the override. Override memos are retained as part of the administrative record. Proceeding with Tier 2 initiation or Tier 3 continuation without a completed override memo when a guardrail indicator is in red zone is a procedural violation under this framework.

SECTION 8: PRESCRIPTIVE SUBSTITUTION GUIDE

The substitutions below replace the most commonly deployed attacker framings of tariff policy with maximum-pressure equivalents that remain within authority rails and resist legal, political, and economic challenge. These are not weaker versions of the original language. They are stronger versions — because they will not be immediately discredited in court, in allied capitals, or in domestic political debate. Each right-column substitute is written as a rule, not persuasion: it anchors to documented predicate, evidence gating, macro-stability, reversibility, and coalition durability.

Attackable Language (Avoid)	Durable Substitute (Use)
"Trade war to punish."	Evidence-gated remedial and strategic-dependency measures with published off-ramps. Every action is tied to a Section 4 predicate and a specific conduct change that triggers suspension.
"Eliminate the trade deficit."	Trade balance outcomes may be monitored as secondary indicators; they are not independent escalation predicates under this architecture.
"Guaranteed reshoring."	Risk-weighted de-risking through strategic-dependency reduction and parallel resilience investment. Tariffs are one instrument; domestic production incentives, permitting reform, and finance are co-equal instruments. No outcome guarantee from tariff action alone.
"Across-the-board tariffs on everything."	HS-code-level targeted measures bounded by the documented Section 4 predicate for each product category. Broad-scope measures require documented HS-level enforceability infeasibility and macro-stability clearance.
"Tariffs on allies to force behavior change."	FTA-partner measures require a documented rationale distinguishing the ally's conduct from the adversary's, a coalition-risk review memo, and a published off-ramp tied to specific conduct resolution. Symmetric treatment of allies and adversaries without documented rationale is prohibited.
"§ 232 national security tariffs on everything strategically important."	§ 232 is confined to defense-industrial and military-capacity predicates documented in the Commerce report. Strategic dependency outside that predicate routes through IEEPA with emergency nexus and guardrail clearance.
"Emergency tariffs indefinitely."	IEEPA and § 122 measures are bounded by emergency nexus and statutory time limits. Continuation requires renewed predicate and macro-stability clearance. Published off-ramps specify what terminates the emergency measure.

"These tariffs will fix inflation."	Macro-stability clearance is a prerequisite for Tier 2+ action. CPI/PCE pass-through is a guardrail indicator with presumptive pause mechanics. Tariff architecture does not guarantee price outcomes — it manages leverage while constraining self-injury.
"Arbitrary product targeting."	Neutral tariff-targeting rule: objective triggers documented before targeting decision, prohibited-factor list, and tariff-targeting log as primary defense exhibit. No product-category action without documented Section 4 predicate.

SECTION 9: COMPOUNDING LOGIC AND COORDINATION WITH PERSIST / IMMPOL

The tariff architecture in this paper operates at the import-flow layer. WP-2026-PERSIST-01 operates at the technology, finance, and influence layers. WP-2026-IMMPOL-04 operates at the domestic enforcement and funding-leverage layer. The three frameworks are designed to compound, not compete:

- Tariff pressure on strategic dependencies (Tier 2) creates the political-economic leverage that makes PERSIST's technology-denial coordination more credible — adversary governments face both import-flow pressure and technology-access pressure simultaneously, raising the cost of maintaining coercive conduct.
- PERSIST's allied resilience pillar (Pillar 5) is the enabling condition for Tier 2+ tariff action — without domestic supply-chain hardening and allied alternative sourcing investment, the strategic-dependency tariff imposes self-injury before it reduces foreign coercive leverage.
- The economic shock guardrails (Section 7) are structurally complementary to PERSIST's guardrail index — both frameworks impose presumptive pause and override documentation requirements when leading indicators signal that escalation is approaching systemic risk territory.
- IMMPOL's domestic enforcement architecture targets the facilitation networks that allow trade distortions (forced technology transfer, illicit procurement, front-company evasion) to operate within the U.S. domestic economy. Tariff measures that are not accompanied by IMMPOL-architecture enforcement of export-control and sanctions evasion produce gaps that adversaries exploit.

The compounding mechanism: tariff pressure raises the cost of maintaining distortive or coercive trade practices; export controls deny the technology that makes those practices strategically valuable; sanctions target the financial infrastructure that enables them; resilience investment reduces the domestic vulnerability that makes foreign coercive leverage effective; and enforcement architecture closes the evasion pathways that would otherwise allow adversaries to absorb any single instrument while routing around the others.

SECTION 10: KNOWN FAULT LINES AND HOW THIS ARCHITECTURE ADDRESSES THEM

This section is not a concession of weakness. It is armor. An architecture that acknowledges the principal vulnerabilities to which it is exposed, and demonstrates how its specific design addresses each, is substantially harder to discredit than one that ignores those vulnerabilities.

This section should be read alongside any legal, political, or academic challenge filed against this framework.

10.1 Inflation and Regressive Burden

FAULT LINE: Tariffs are a consumption tax borne disproportionately by lower-income households and passed through to downstream industries. Inflationary pass-through erodes real wages and creates domestic political reversal pressure before the strategic objective is achieved.

HOW THIS ARCHITECTURE ADDRESSES IT: The CPI/PCE pass-through guardrail (Indicator A, Section 7) is a binding constraint, not a monitoring note. When pass-through exceeds threshold, a presumptive pause requires a recorded override before the measure continues. The architecture explicitly prohibits tariffs from becoming 'permanent baseline taxation absent a defined emergency predicate and macro-stability clearance.' Parallel non-tariff instruments (investment incentives, permitting, procurement) are the Section 1.3 sequencing rule's designated tools for industrial policy objectives where inflation pass-through risk is high.

RESIDUAL RISK

- The threshold calibrations for Indicator A are subject to political pressure at the moment they matter most. Thresholds must be set before measure imposition, not adjusted post-imposition when override pressure is highest.
- Lower-income household impact analysis is not built into the existing guardrail framework and should be added as a distributional assessment requirement before Tier 2+ imposition.

10.2 Retaliation and Export Harm

FAULT LINE: Targeted countries retaliate against U.S. agricultural, industrial, and services exporters in sectors with concentrated political constituencies, creating domestic pressure for reversal that operates on a faster timeline than the strategic objective.

HOW THIS ARCHITECTURE ADDRESSES IT: The retaliation activation index (Indicator C, Section 7) is a binding guardrail that triggers presumptive pause when documented retaliatory activation exceeds threshold. The neutral targeting rule (Section 6) reduces the retaliatory surface area by keeping measures HS-line targeted and documented to specific predicates — making blanket retaliation harder to justify diplomatically than a response to a 'punish everything' posture. Published off-ramps give the targeted country a pathway to avoid retaliation activation by resolving the underlying predicate.

RESIDUAL RISK

- Agricultural retaliation has historically been the most politically effective retaliation vector and operates faster than any guardrail review cycle. Pre-negotiated agricultural carve-out or exemption schedules with key allies should be developed before Tier 2 imposition, not after retaliation activates.
- Services-sector retaliation (financial services, technology services, intellectual property) is difficult to capture in the retaliation index because it operates through regulatory channels rather than tariff schedules. This is a gap in the current guardrail architecture.

10.3 FX and Macro Instability

FAULT LINE: Sustained tariff pressure can trigger dollar appreciation that erodes U.S. export competitiveness, foreign government FX-management responses that generate financial stability risk, and capital flow disruptions that create macro instability independent of the tariff's intended effect.

HOW THIS ARCHITECTURE ADDRESSES IT: The FX overshoot guardrail (Indicator B, Section 7) monitors USD appreciation in the context of tariff imposition and triggers pause when the FX effect exceeds threshold. The IEEPA rail requires macro-stability clearance before imposition, which includes an FX impact assessment. The § 122 bridge is time-limited precisely because sustained emergency surcharges amplify FX effects.

RESIDUAL RISK

- Dollar appreciation triggered by tariff imposition that benefits the targeted country's export competitiveness is a structural paradox in tariff-as-leverage logic that the guardrail framework cannot fully resolve — it can only detect and pause.
- The FX manipulation predicate in Section 4.5(2) is currently under-defined relative to the Treasury Omnibus Trade statute and IMF Article IV. Definitional slippage between 'manipulation' and 'FX policy response to U.S. tariffs' needs tighter bright-line treatment in Appendix C.

10.4 Allied Fracture and WTO Blowback

FAULT LINE: Tariff measures applied to allied FTA partners simultaneously with adversary targets — or without documented rationale distinguishing ally conduct from adversary conduct — fracture the technology-denial and sanctions coordination that the broader posture depends on.

HOW THIS ARCHITECTURE ADDRESSES IT: The FTA rail (Section 2.6) explicitly identifies allied fracture as a hard structural limit and requires a documented rationale distinguishing ally conduct before FTA-partner measures proceed. The coalition-risk review (Section 7 governance) is a required artifact before Tier 2+ action involving FTA partners. The compounding logic section (Section 9) makes the dependency explicit: tariff coalition fracture disables PERSIST coordination and destroys the strategic value of both frameworks simultaneously.

RESIDUAL RISK

- The live contradiction between tariff actions against Netherlands, Japan, and South Korea — the same partners required for semiconductor-denial coordination under PERSIST — is the largest unaddressed implementation gap across all three framework papers. This framework cannot resolve it; it can only make the contradiction visible and require that it be addressed before Tier 2 escalation.
- WTO Appellate Body paralysis means that Article XXI invocations currently face limited multilateral discipline — but this creates a false sense of security. Regional and bilateral FTA dispute mechanisms remain active, and adverse WTO panel decisions (even without Appellate Body review) generate political costs that constrain future invocations.

10.5 Evasion and Enforcement Infeasibility

FAULT LINE: Targeted tariffs create strong economic incentives for transshipment, country-of-origin manipulation, and minimal-processing evasion. Enforcement infeasibility means the measure imposes costs on compliant actors while failing to reach the intended targets.

HOW THIS ARCHITECTURE ADDRESSES IT: The CBP enforceability rail (Section 2.7) requires documented enforceability feasibility as a predicate for HS-code targeting and requires anti-evasion infrastructure investment before measure imposition. The tariff-targeting log (Section 6) documents the enforceability assessment for each covered product category. Where HS-level enforcement is infeasible, the escalation ladder requires documented evidence of that infeasibility before broader-scope measures are authorized.

RESIDUAL RISK

- Anti-evasion enforcement (Enforce and Protect Act; Section 232(d) evasion investigations) is chronically under-resourced relative to the scale of transshipment activity. Budget allocation for CBP anti-evasion capacity must be treated as a prerequisite cost of Tier 2+ action, not a downstream administrative detail.
- Minimal-processing rules-of-origin determinations create a structural gap between HS-code targeting and economic effect. Third-country assembly of products from targeted-country components may satisfy origin rules while preserving the strategic dependency the measure was designed to reduce.

10.6 Domestic Supply Constraints and Reshoring Bottlenecks

FAULT LINE: Strategic-dependency tariffs designed to incentivize domestic production often impose costs before domestic capacity exists to absorb the transition. Capital investment timelines, regulatory approval periods, and labor market constraints mean that the 'time-to-replace' analysis underpinning the Section 4.3 predicate is the most critical and most optimistically assessed element of the dependency determination.

HOW THIS ARCHITECTURE ADDRESSES IT: Section 4.3 requires documented time-to-replace analysis as part of the strategic-dependency predicate. The supply-chain interruption guardrail (Indicator D, Section 7) monitors whether the tariff is disrupting downstream industries before alternatives are available and triggers pause if disruption exceeds threshold. The Section 1.3 sequencing rule requires parallel domestic resilience investment — permitting, procurement, finance — as a co-equal instrument rather than a downstream result of tariff pressure alone.

RESIDUAL RISK

- Time-to-replace analysis in the Section 4.3 predicate is only as reliable as the capital deployment assumptions embedded in it. Regulatory approval timelines for domestic production in semiconductor fabs, pharmaceutical API plants, and critical mineral processing facilities frequently exceed the assumptions in supply-chain mapping analyses. Domestic production bottlenecks should be treated as a Tier D systemic risk factor if they persist beyond the strategic-dependency tariff's first review cycle.
- The gap between 'tariff imposed' and 'domestic capacity at scale' is the window during which adversary countermeasures (export restrictions, price manipulation) impose the greatest domestic cost. Resilience investment must be front-loaded, not treated as a result that follows automatically from tariff imposition.

SECTION 11: CONCLUSIONS

The architecture presented in this paper delivers the maximum lawful tariff and trade enforcement pressure available under existing U.S. statutory authority and international trade

law, for the specific purposes of remediating verified distortions, coercive trade practices, and documented strategic dependencies. It achieves this not by overstating authority or promising outcomes it cannot deliver, but by deploying every available instrument precisely, procedurally, and in a sequence that builds an evidentiary and policy record that supports escalation while maintaining reversibility and macro-stability.

The seven-rail authority framework ensures that each instrument is used within its documented legal authority and is not stretched beyond its predicate. The tiered escalation ladder ensures that every action is grounded in a Section 4 predicate rather than a credible concern or a political objective. The economic shock guardrails ensure that the architecture is self-correcting when domestic costs threaten to exceed strategic benefits. The neutral targeting rule and tariff-targeting log ensure that every product-category selection can be defended on its evidentiary merits. The substitution guide ensures that the framework's language is staffer-usable and litigation-defensible simultaneously.

The most important principle this paper advances is the distinction between predicate and objective. Every tariff mechanism in this architecture is tied to a documented predicate — a verified distortion, coercive practice, or strategic dependency — not to a desired economic outcome. This distinction is not a concession to critics of trade enforcement. It is the reason this architecture survives legal, coalition, and public credibility review while postures built on outcome promises do not.

SUMMARY: THE SEVEN INDEPENDENT AUTHORITY RAILS

- Rail 1: § 301 — Remedial rail for unfair trade practices; record-intensive; investigation-bounded.
- Rail 2: § 232 — Defense-industrial and military-capacity only; Commerce report-bounded; no industrial policy or retaliation use.
- Rail 3: IEEPA — Strategic-dependency tariffs; emergency nexus required; guardrail-gated; time-bounded by off-ramp.
- Rail 4: § 122 Bridge — Time-limited (150 days); bridge to IEEPA predicate only; no standalone sustained use.
- Rail 5: AD-CVD — Quasi-judicial; distortion-specific; margin-bounded; independent of executive discretion rails.
- Rail 6: WTO / FTA — International law constraint rail; Article XXI is justiciable; FTA partners require documented rationale.
- Rail 7: Customs Administration — Enforceability predicate; HS-code default; anti-evasion infrastructure as prerequisite.

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APPENDIX A: AUTHORITY RAIL MAPPING

This appendix maps each principal authority rail to its governing statute, evidentiary threshold, hard limits, required record artifacts, and off-ramp criteria. The framework's voluntary durability standards are identified where they exceed the statutory minimum. A proposed action that cannot satisfy the hard limits in column 4 fails this architecture's requirements regardless of how it is framed.

APPENDIX A — AUTHORITY RAIL MAPPING

Authority Rail	Primary Use	Evidentiary Threshold	Hard Limits	Required Record	Off-Ramp / Reversal
§ 301 (19 U.S.C. § 2411)	Unfair trade practices; unreasonable, unjustifiable, or discriminatory acts burdening U.S. commerce	USTR investigation and written determination; Tier B standard. Framework applies confirmed-attribution standard as durability rule.	Scope must track investigation record. WTO notification required for WTO-inconsistent measures. APA record review applies — post-hoc rationale expansion fails.	USTR determination; investigation record; scope memorandum; WTO notification record; Coalition-risk review if FTA partner involved.	USTR determination that documented practice has been remediated; WTO panel finding; published off-ramp satisfaction.
§ 232 (19 U.S.C. § 1862)	National security threat from imports; defense-industrial and military-capacity predicate only under this architecture	Secretary of Commerce investigation and report; defense-industrial or military-capacity nexus documented in Commerce report.	Scope must remain HS-line tailored to Commerce report predicate. No post-hoc expansion. No industrial policy or retaliation use. This is a hard structural limit.	Commerce § 232 report; HS-line nexus memorandum; record of presidential action bounded by Commerce report.	Presidential proclamation rescission; documented resolution of defense-industrial risk; HS-line removal upon ally/domestic sourcing alternatives established.
IEEPA (50 U.S.C. §§ 1701–1708)	Strategic-dependency tariffs; emergency measures for coercive-leverage or supply-chain-fragility risk outside § 232 predicate	Declared national emergency with documented nexus to specific supply-chain or coercive-leverage risk; Tier B–C standard; Section 4.3 predicate satisfied.	Emergency nexus is a hard structural limit — scope cannot exceed the declared emergency's documented nexus. No standalone industrial policy use. Guardrail clearance required.	Emergency declaration with documented nexus; scope memorandum tracing HS-lines to emergency predicate; macro-stability clearance memo; Coalition-risk review memo at Tier 2+.	Emergency termination upon verified supply-chain diversification to allied sources; or documented reduction in coercive leverage below threshold; published off-ramp satisfaction.

§ 122 (19 U.S.C. § 2132)	Balance-of-payments bridge; time-limited to 150 days absent congressional authorization; maximum 15% ad valorem	BOP deficit finding; bridge predicate while IEEPA or other rail record is developed.	150-day statutory limit is a hard expiration. Cannot substitute for IEEPA emergency nexus. No use as standalone sustained strategic-dependency authority.	BOP finding memorandum; bridge-to-IEEPA transition plan with documented timeline; congressional engagement memo if continuation sought.	Statutory expiration; congressional non-continuation; or transition to IEEPA predicate within 150-day window.
AD-CVD (19 U.S.C. §§ 1671–1677n)	Dumping and actionable subsidies; quasi-judicial; Section 4.2 predicate	Commerce margin calculation (AD) or subsidy determination (CVD); ITC material injury determination. Tier B standard by statute.	Duty must be sized to calculated margin or subsidy rate — not to desired price outcome. Political interference in determination process generates CIT reversal and WTO exposure. This is a hard limit.	Commerce determination and calculation record; ITC injury determination; duty order bounded by margin/subsidy rate.	Sunset review; administrative review showing changed circumstances; WTO dispute resolution; revocation upon zero/de minimis margin determination.
WTO / FTA Rail	International law constraint; GATT Art. XXI; FTA dispute mechanisms; coalition-durability requirement	No affirmative action threshold — this is a constraint rail. Actions under §§ 301, 232, IEEPA must satisfy applicable international law requirements.	GATT Art. XXI is justiciable (Russia — Traffic in Transit). FTA partner measures require documented rationale. Coalition fracture is a hard strategic limit that disables PERSIST coordination.	WTO notification and consultation record; FTA partner rationale memorandum; Coalition-risk review memo.	WTO dispute resolution; FTA dispute settlement; coalition-risk review memo confirming concurrence.
Customs Administration Rail	CBP enforceability; rules-of-origin integrity; anti-evasion; HS-code feasibility	Enforceability feasibility assessment for each HS-line before imposition. Anti-evasion infrastructure in place or funded.	HS-level enforceability is a prerequisite, not an afterthought. Broad-scope measures without documented enforceability	CBP enforceability assessment; anti-evasion infrastructure plan; rules-of-origin integrity analysis; country-of-origin attribution record.	Enforcement closure upon resolution of evasion pattern; HS-line removal upon documented compliance.

			constraint are an architecture violation.		

APPENDIX B: MODEL RECORD ARTIFACTS

The following four model memoranda are the required record artifacts for principal action categories under this architecture. Each action at Tier 2 and above requires the completion of the applicable memorandum before the action proceeds. The memos document the predicate, authority rail, prohibited-factor confirmation, coalition coordination, and off-ramp criteria in a single instrument. A record that cannot be produced in this format did not meet the requirements of this architecture before the action was taken.

B.1 Tariff Action Memorandum

MODEL: TARIFF ACTION MEMORANDUM	
TO:	*[Reviewing Authority / Senior Official]*
FROM:	*[Selecting Official / Agency]*
DATE:	*[Date of Memorandum]*
RE:	Proposed Tariff Action — [Authority Rail] — [HS-Line(s) / Product Categories]
AUTHORITY RAIL:	*[§ 301 / § 232 / IEEPA / § 122 / AD-CVD — cite Section 2 rail]*
SECTION 4 PREDICATE:	*[State which Section 4.1–4.4 predicate applies. Attach the formal investigation finding, supply-chain assessment, or emergency declaration nexus documentation that satisfies the predicate.]*
HS-LINE SCOPE:	*[List covered HS codes. State the nexus between each HS-line and the documented predicate. If sector-wide or country-wide scope is proposed, document why HS-level targeting is infeasible and attach enforceability constraint analysis.]*
SECTION 4.5 EXCLUSIONS CONFIRMED:	I confirm that the proposed action is not based solely on factors excluded under Section 4.5, including: trade deficit as standalone factor; import volume absent verified distortion; political animus; FX movements absent manipulation predicate; SOE status absent distortion predicate; revenue maximization. [Selecting Official Signature]
PROHIBITED SELECTION FACTORS CONFIRMED ABSENT:	I confirm that no prohibited selection factor under Section 6.2 was considered in the targeting decision. [Selecting Official Signature]
MACRO-STABILITY CLEARANCE:	*[State whether macro-stability clearance has been completed (required for Tier 2+). Attach guardrail index status memo. If any guardrail indicator is in red zone, attach override memorandum.]*
COALITION-RISK REVIEW:	*[State whether Coalition-Risk Review Memo has been completed (required for Tier 2+). If FTA partner is involved at any tier, attach completed coalition-risk review memo.]*
OFF-RAMP CRITERIA:	*[State specifically what verified conduct change, predicate resolution, or supply-chain development would support suspension or removal. State whether this pathway has been communicated to the affected foreign government where applicable.]*
RECOMMENDATION:	*[State recommended action, proposed duration, and review schedule.]*

B.2 Coalition-Risk Review Memorandum

MODEL: COALITION-RISK REVIEW MEMORANDUM (TARIFF)	
TO:	*[Interagency Trade Policy Coordinating Committee / Senior Official]*
FROM:	*[Lead Coordinating Agency — USTR]*
DATE:	*[Date of Memorandum]*
RE:	Coalition-Risk Review — [Proposed Tariff Action] — [Tier Level]
ALLIES CONSULTED:	*[List allied governments and FTA partners consulted or notified, by name. Include date of consultation and method.]*
FTA PARTNER RATIONALE:	*[If the proposed action applies to or affects FTA partners: state the documented rationale distinguishing the ally's conduct from the primary target adversary's conduct. A measure applied to FTA partners without this rationale fails the Section 2.6 coalition-durability requirement.]*
ALLIED RESPONSES:	*[Describe each ally's response: concurrence, non-objection, conditional support, or objection. Note any FTA dispute mechanism activation or threat.]*
PERSIST COORDINATION IMPACT:	*[Assess whether the proposed tariff action affects technology-denial or sanctions coordination under WP-2026-PERSIST-01 with the same allied partners. If adverse impact is identified, state mitigation measures and whether the allied fracture risk exceeds the tariff action's strategic benefit.]*
DISSENT RECORDING:	*[Record any allied formal objection with: (a) nature of objection; (b) overriding rationale; (c) mitigation offered; (d) whether 30-day review hold applies.]*
RECOMMENDATION :	*[State whether action should proceed, proceed with FTA-partner exemption or modification, or be deferred.]*

B.3 Macro-Stability Clearance Memorandum

MODEL: MACRO-STABILITY CLEARANCE MEMORANDUM	
TO:	*[Interagency Trade Policy Coordinating Committee / Senior Official]*
FROM:	*[Lead Economic Agency — Treasury / CEA]*
DATE:	*[Date of Memorandum]*
RE:	Macro-Stability Clearance — [Proposed Tariff Action] — [Tier Level]
GUARDRAIL INDEX STATUS:	*[State the current status of each of the five guardrail indicators (A–E): green / yellow / red. If any indicator is in red zone, a completed override memorandum (B.4) is required before this clearance memo can authorize the proposed action.]*
INDICATOR A — CPI/PCE PASS-THROUGH:	*[Estimate the pass-through impact of the proposed measure on CPI/PCE in covered product categories. State whether the estimate falls within or outside the green-zone threshold. Attach methodology.]*
INDICATOR B — FX IMPACT:	*[Estimate the FX impact of the proposed measure on USD exchange rate with the targeted country's currency. State whether the estimate falls within the green-zone threshold.]*

INDICATOR C — RETALIATION ACTIVATION:	*[Assess the probability and estimated scale of retaliatory action by the targeted country against U.S. exports. State whether the estimate falls within the green-zone threshold. Identify highest-risk retaliation sectors.]*
INDICATOR D — SUPPLY CHAIN INTERRUPTION:	*[Assess the probability of downstream domestic supply disruption in industries dependent on the covered product categories before domestic or allied alternatives are available at scale. State whether the estimate falls within the green-zone threshold.]*
INDICATOR E — ALLIED COHESION:	*[State whether any FTA partner has indicated intention to activate dispute mechanisms or withdraw from coordinated trade posture in response to the proposed action. Note impact on PERSIST technology-denial coordination.]*
CLEARANCE DETERMINATION:	*[State whether macro-stability clearance is granted (all indicators green), granted with conditions (yellow indicators with mitigation measures), or denied (any red indicator without completed override memorandum).]*
REVIEW SCHEDULE:	*[State the monitoring frequency and trigger for re-review of guardrail indicators after measure imposition.]*

B.4 Guardrail Override Memorandum

MODEL: GUARDRAIL OVERRIDE MEMORANDUM	
TO:	*[Interagency Trade Policy Coordinating Committee / Senior Official — Assistant Secretary Level or Above]*
FROM:	*[Lead Coordinating Agency]*
DATE:	*[Date of Memorandum]*
RE:	Guardrail Override Authorization — [Proposed / Continued Action] — [Red-Zone Indicator]
RED-ZONE INDICATOR:	*[Identify which guardrail indicator (A/B/C/D/E) is in red zone and the current reading that triggered the presumptive pause.]*
PROPOSED ACTION:	*[Describe the specific Tier 2 or Tier 3 action proposed to proceed despite the red-zone reading.]*
OVERRIDE RATIONALE:	*[State why the proposed action is warranted despite the red-zone indicator, addressing: (a) why the strategic benefit of proceeding outweighs the documented economic risk; (b) evidence that the indicator reading does not reflect an imminent irreversible harm; and (c) what makes the risk addressable or manageable in the context of the proposed action.]*
RISK MITIGATION:	*[Describe specific risk-mitigation measures: price adjustment mechanisms, targeted exemptions, parallel domestic support measures, allied coordination steps, and contingency plans if the risk materializes.]*
SENIOR OFFICIAL AUTHORIZATION:	*[Name, title, and signature of authorizing senior official. Override cannot be authorized below the Under Secretary level for IEEPA-based Tier 2 or Tier 3 actions.]*
RETENTION NOTE:	This memorandum is retained as part of the administrative record. Proceeding without a completed and signed override memorandum when a guardrail indicator is in red zone is a procedural violation under this framework.

APPENDIX C: DEFINITIONAL BRIGHT LINES

This appendix provides supplemental definitional precision for the three most contested terms in this architecture. The primary definitions are in Section 4; this appendix expands the bright-line guidance for application. Where Section 4 provides a definition and Appendix C provides a bright-line, the bright-line is the operational test.

C.1 Coercive Trade Practice — Bright Lines

COERCIVE TRADE PRACTICE — COUNTS

- Documented suspension of export licenses or supply deliveries to a specific country or company following a political dispute, where the suspension is timed to the political event and cannot be explained by commercial logic.
- Official government directive (published or evidenced through government communications) instructing state-owned or state-influenced enterprises to reduce or terminate commercial relationships with U.S. or allied entities in response to government policy decisions.
- Systematic denial of regulatory approval, market access, or operating license to U.S. firms in a sector where domestic competitors face no equivalent delay, documented through comparative regulatory timeline analysis.
- Conditioning procurement or investment approval on transfer of proprietary technology or source code, documented through company disclosures, government directives, or legal proceedings.

COERCIVE TRADE PRACTICE — DOES NOT COUNT

- Regulatory requirements of general application that apply equally to domestic and foreign firms, absent evidence of discriminatory enforcement.
- Export restrictions applied for legitimate environmental, health, or safety reasons under WTO-compatible rules, absent evidence that the restriction is targeted at specific foreign governments.
- Price competition, efficiency-based market-share growth, or scale economies that disadvantage U.S. exporters without government direction or subsidy.

C.2 Strategic Dependency — Bright Lines

STRATEGIC DEPENDENCY — COUNTS

- A product or input where: (a) imports from a single foreign country exceed 70% of U.S. domestic consumption; (b) domestic or allied-nation production cannot reach 30% of consumption within 24 months based on current capital deployment; and (c) shortage in a disruption scenario would affect national defense, critical infrastructure, or essential civilian health needs. All three criteria required.
- A product where a foreign government has demonstrated willingness to use supply as a

coercive instrument (documented prior coercive use or explicit threat) and where U.S. or allied alternatives are not available at scale within the strategic planning horizon.

STRATEGIC DEPENDENCY — DOES NOT COUNT

- Ordinary import dependence where domestic or allied-nation alternatives exist at scale within 12–24 months of capital deployment, even if current import concentration is high.
- Import concentration in a product category where the foreign source competes on legitimate commercial terms and has not demonstrated coercive intent or conduct.
- General industrial competitiveness gaps where the import advantage is attributable to factor costs, scale, or efficiency rather than documented distortion or coercive leverage.

C.3 Currency Manipulation vs. FX Policy Response — Bright Lines

This bright line addresses the Section 4.5(2) FX exclusion and its boundary with the manipulation predicate. The distinction between currency manipulation (a predicate for action) and FX policy response to U.S. tariffs (excluded from the predicate) is legally and analytically contested. The following bright lines apply:

CURRENCY MANIPULATION — COUNTS AS PREDICATE

- Treasury Enhanced Analysis designation under 19 U.S.C. § 4421(a)(1), documented through persistent current account surplus, material current account surplus, and persistent one-sided intervention.
- IMF Article IV finding of fundamental misalignment with official intervention for non-balance-of-payments purposes, documented through IMF consultation record.

FX MOVEMENT — DOES NOT COUNT AS PREDICATE

- Exchange rate depreciation that occurs as a market response to economic conditions altered by U.S. tariff imposition, absent documented official intervention.
- Exchange rate movements within the range of normal market volatility, absent a Treasury Enhanced Analysis designation or IMF finding.
- Exchange rate policy that maintains a peg or managed float consistent with IMF Article IV consultation findings, absent documented manipulation predicate.

APPENDIX D: ECONOMIC SHOCK GUARDRAIL METRICS DASHBOARD

This dashboard operationalizes the five guardrail indicators from Section 7. Each indicator has a defined data source, measurement frequency, green/yellow/red threshold, and governance action. The dashboard is reviewed monthly on a standing basis and on an ad hoc basis before any Tier 2 initiation or Tier 3 continuation. Threshold values marked [X], [Y], [Z], [W], [V] require classified or restricted baseline calibration before operational implementation.

APPENDIX D — GUARDRAIL METRICS DASHBOARD

Indicator	Data Source	Measurement Frequency	Green Zone	Yellow Zone	Red Zone	Governance Action on Red
A — CPI/PCE Pass-Through	BLS CPI (monthly); BEA PCE deflator (monthly); Federal Reserve pass-through analysis (quarterly)	Monthly (regular); Ad hoc before Tier 2 initiation	< [X]% annualized pass-through in covered categories	[X]–[Y]% annualized; triggered enhanced monitoring and mitigation planning	> [Y]% annualized; triggers presumptive pause on Tier 2 initiation; override memo required to proceed	Presumptive pause. Mandatory override memo. Tariff Action Memo requires updated CPI/PCE assessment before continuation.
B — FX Overshoot / Capital Flight	Federal Reserve H.10 (weekly); Treasury FX monitoring (monthly); IMF Article IV consultations (annual)	Weekly FX tracking; Monthly capital flow review; Ad hoc before Tier 2+	USD appreciation vs. targeted currency < [Y]% within [Z]-month window; no documented capital flow disruption	[Y]–[Z]% appreciation with limited capital flow disruption; triggered FX impact assessment	> [Z]% appreciation or documented capital flight / financial stability signal; triggers presumptive pause	Presumptive pause. Override memo. Consult Treasury and Federal Reserve before continuation. Assess retaliatory FX-management risk.
C — Retaliation Activation	USTR retaliatory action monitoring (continuous); USDA export data (monthly); Commerce export disruption reports (monthly)	Continuous monitoring; Monthly summary review	No documented retaliatory tariff or market-access barrier activation against U.S. exports	Announced but unimplemented retaliation; < [W]% U.S. export value in affected sectors	Implemented retaliation exceeding [W]% of U.S. export value; or retaliatory measures in agricultural or politically concentrated sectors	Presumptive pause. Override memo. Mandatory assessment of agricultural sector impact and political reversal risk. Coalition-risk review update.
D — Supply Chain	BLS Producer Price Index	Monthly PPI; Monthly	Covered product categories:	[V]–[2V]% price increase in	> [2V]% price increase or documented	Presumptive pause on Tier 2 continuation.

Interruption	(monthly); ISM supply-chain surveys (monthly); CBP disruption reports (as available)	ISM; Ad hoc on measure imposition	price and availability within [V]% of pre-measure baseline; no documented downstream shortage	covered categories; supply tightness reported but not shortage	shortage in downstream U.S. industries; indicates alternatives not yet at scale	Override memo. Mandatory assessment of domestic production runway vs. current disruption. Consider emergency exemption for specific downstream sectors.
E — Allied Cohesion	USTR FTA dispute tracker (continuous); allied government formal communications (continuous); PERSIST coordination status (monthly)	Continuous monitoring; Monthly PERSIST coordination review	All primary FTA partners in coordinated posture; no active FTA dispute mechanism against U.S. tariff measures	One FTA partner expressing concern or conditional support; no active dispute mechanism	FTA dispute mechanism activated by one or more primary partners; or primary partner withdrawing from PERSIST technology-denial coordination	Presumptive pause on Tier 2+ continuation. Override memo. Mandatory coalition-risk review update. Assess PERSIST coordination impact. Consider FTA-partner exemption or modification.

DASHBOARD GOVERNANCE

OWNERSHIP: The guardrail dashboard is owned by the interagency trade policy coordinating committee. Treasury leads Indicators A and B; USTR leads Indicators C and E; Commerce leads Indicator D. NSC coordinates across all five.

- REVIEW CYCLE: Standing monthly review meeting with minutes retained as administrative record. Ad hoc review required before any Tier 2 initiation or Tier 3 continuation decision. Tier 3 initiation requires all indicators in green or yellow zone with documented mitigation for each yellow indicator.
- THRESHOLD CALIBRATION: Threshold values ([X], [Y], [Z], [W], [V]) are set before any tariff action is taken under this architecture and are documented in a classified or restricted threshold-setting memorandum. Thresholds may not be revised upward after a measure is imposed without a new threshold-setting memorandum signed by the interagency coordinating committee. Post-hoc threshold revision to avoid triggering a presumptive pause is a procedural violation under this framework.
- OVERRIDE LOG: All override memoranda are logged in a centralized override registry maintained by the NSC. The registry is available for interagency review and is the primary defense exhibit in any challenge to the procedural validity of a Tier 3 action taken during a red-zone period.

Prepared by:
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